

HOUSE BILL 367

By Hale

AN ACT to amend Tennessee Code Annotated, Title 4;
Title 5; Title 6; Title 47 and Title 55, relative to data
privacy.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 47, Chapter 18, Part 1, is amended by
adding the following as a new section:

47-18-136.

(a) As used in this section:

(1) "Advanced driver assistance system" means a feature or system of a
vehicle intended to increase the safety of operating the vehicle, including the use
of vehicle sensors and cameras to provide lane departure warnings, blind spot
detectors, rear crash prevention, tire pressure monitors, and traction controls;

(2) "Driving data":

(A) Means information collected by a vehicle through the vehicle's
systems and applications, including an infotainment system, telematics
system, advanced driver assistance system, vehicle sensors, connected
applications, or global positioning system; and

(B) Includes acceleration events, sudden or harsh hard brake
events, high speed events, information about the health of the vehicle,
and information from devices that are synced or connected to the vehicle;

(3) "Entity" means a vehicle manufacturer, corporation, partnership,
limited liability partnership, or other business entity, or a third party on behalf of a

vehicle manufacturer, corporation, partnership, limited liability partnership, or other business entity;

(4) "Infotainment system" means a digital interface in a vehicle that allows a driver or passenger to:

(A) Access and control use of the vehicle's radio, global positioning system or other navigation controls, vehicle settings, streaming services, and other information, communication, or entertainment settings and features; and

(B) Connect the driver's or passenger's cell phone to the system for access to and use of the cell phone's text message and call system, applications, global positioning system, and other services or systems that are compatible with the vehicle; and

(5) "Telematics system" means a system or device in a vehicle that retrieves data generated by the vehicle, including the vehicle's global positioning system position, speed, diagnostic information and vehicle faults, trip distance or time, idling time, instances of sudden or harsh braking or driving, seat belt use, and fuel consumption.

(b)

(1) An entity shall not share, sell, or otherwise distribute a vehicle's driving data without the express, written consent of the owner of the vehicle, regardless of how or where the driving data is collected or stored.

(2) An entity seeking to sell, share, or otherwise distribute a vehicle's driving data shall provide to the owner or purchaser of a vehicle in this state:

(A) A disclosure that the driving data for the vehicle will be collected, a description of how the driving data will be collected, and the purpose for collecting the driving data; and

(B) A notice that driving data from or related to the vehicle shall not be shared, sold, or otherwise distributed without the explicit, written consent of the owner of the vehicle.

(3) If the entity receives notice of or has reason to know that the vehicle was sold, then the entity shall not share, sell, or otherwise distribute the vehicle's driving data unless the entity obtains the express, written consent of the new owner of the vehicle.

(c) An entity shall obtain the consent described in subdivision (b)(1) one (1) year after the consent was initially obtained, or by January 1 of the following year, whichever is later, and annually thereafter to continue to share, sell, or otherwise distribute a vehicle's driving data. If the entity does not receive the required consent, then the entity shall not continue to share, sell, or otherwise distribute a vehicle's driving data.

(d) An entity shall maintain a manner by which a vehicle owner who has previously given the consent described under subdivision (b)(1) may revoke the consent. The mechanism by which a vehicle owner may revoke previously given consent must be easily accessible to the vehicle owner, including through the entity's website and applications.

(e) This section does not apply to sharing, selling, or otherwise distributing driving data to the national highway traffic safety administration, including driving data provided in accordance with the National Traffic and Motor Vehicle Safety Act of 1966 (49 U.S.C. § 30101 et seq.), or to another state or federal entity in accordance with applicable law.

(f) A violation of this section constitutes a violation of the Tennessee Consumer Protection Act of 1977, compiled in this part. A violation of this section constitutes an unfair or deceptive act or practice affecting trade or commerce and is subject to the penalties and remedies as provided in this part.

SECTION 2. Tennessee Code Annotated, Section 47-18-104(b), is amended by adding the following as a new subdivision:

() Violating § 47-18-136;

SECTION 3. This act takes effect July 1, 2025, the public welfare requiring it, and applies to conduct occurring on or after that date.